FIRST AMENDMENT TO PURCHASE AND SALE AGREEMENT

THIS FIRST AMENDMENT TO PURCHASE AND SALE AGREEMENT (THIS "First Amendment") is made and entered into as of the 16th day of January 2017, by and between **CFS Tucson, LLC**, (hereinafter "SELLER") and **FDJ HESPERIA, LLC AND OR ASSIGNEES,** (hereinafter "BUYER"):

RECITALS:

A. Seller and Buyer entered into that certain Purchase and Sale Agreement dated December 14th, 2016 (the "Agreement"), pursuant to which Seller agreed to sell to Buyer and Buyer agreed to purchase from Seller the Comfort Suites at Tucson Mall.
B. The parties now desire to amend the agreement pursuant to the terms and conditions hereof.

AGREEMENT:

NOW THEREFORE, for good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties hereto hereby agree as follows.

1. Closing Date. The closing date shall be extended for an additional 60 days to March 31st, 2017.
2. Earnest Money Deposit. Buyer agrees to deposit an additional $600,000 EARNEST MONEY DEPOST with ESCROW AGENT and shall be applied toward the down payment and PURCHASE PRICE at CLOSING. BUYER and SELLER agree that said EARNEST MONEY DEPOSIT shall be released to SELLER. BUYER'S EARNEST MONEY shall be fully non-fundable.
3. Counterparts. This First Amendment may be executed in two or more counterparts, each of which shall be deemed originals, and all of which taken together shall constitute one instrument. This First Amendment may be executed by facsimile signatures which shall be binding on the parties hereto, with original signatures to be delivered as soon as reasonably practical thereafter.
4. Authority. Each person executing this First Amendment represents that he or she has all authority required to execute and deliver this First Amendment on behalf of Buyer or Seller, as the case may be.
5. Ratification. Seller and Buyer hereby ratify and confirm all of their obligations under the Agreement. Except as hereby amended by this First Amendment, the Agreement is not amended, modified, or altered in any way and remains in full force and effect.

IN WITNESS WHEREOF, the parties have executed this First Amendment, the day and year

 _____BI _____SI

above written.

SELLER:
CFS Tucson, LLC

_____ 1-17-17
By: Mr. Randal G. Dix, TTEE DATE

BUYER:
FDJ HESPERIA, LLC

_____ 1/16/17
By: Mr. Robert L. Burton DATE

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